

		In reaching this number, the Court deducted the time spent on prelitigation tasks, some duplicative tasks, research on law that should already be known, and a motion that was never filed. The Court declines to award a multiplier, as it does not find that the issues in this matter were novel or difficult at all. (See <i>Robertson v. Fleetwood Travel Trailers</i> (2006) 144 Cal. App. 4th 785, 819.) A fee enhancement is entirely discretionary. (See <i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 247-48.) Plaintiff is additionally awarded her costs in the amount of \$4,755.68, as these are not challenged by Defendant. Plaintiff shall give notice of the ruling.
6.	2025-1536771 Nguyen vs. Coast Community College District	Petitioner Mary Nguyen’s motion for or preliminary injunction is denied. [ROA #72.] <u>Legal Standard</u> Code Civ. Proc. § 526(a)(3) provides that an injunction may be granted: “When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.” See <i>San Francisco Newspaper Printing Co., Inc. v. Superior Court</i> (1985) 170 Cal.App.3d 438, 442, and Rutter, <i>Civil Procedure Before Trial</i>, Section 9:528. The purpose of Section 526(a)(3) is to preserve the status quo pending litigation. See, <i>Stockton v. Newman</i> (1957) 148 Cal. App. 2d 558, 563. A plaintiff seeking a preliminary injunction must demonstrate (1) a likelihood of prevailing on the merits, and (2) the threat of irreparable injury. See <i>Jessen v. Keystone Savings and Loan Assoc.</i> (1983) 142 Cal. App. 3d 454, 459. If plaintiff fails to establish either element, a preliminary injunction should be denied. <i>Id.</i> To establish a likelihood of prevailing on the merits, the moving party must present evidence demonstrating a probability of prevailing on the merits. This is customarily done by affidavits or declarations, although a verified complaint and other discovery can be considered. See <i>Continental Baking Co. v. Katz</i> (1968) 68 Cal. 2d 512, 527, and Rutter, <i>Civil Procedure Before Trial</i>, Section 9:574 to 9:581. In addition, the moving party also has the burden of showing that irreparable harm will be suffered if the injunction is not issued. See,

Tiburon v. Northwestern Pacific Railroad Co. (1970) 4 Cal.App.3d 160, 179. Under California law, if monetary damages provide an adequate remedy then injunctive relief cannot be granted. See *Thayer Plymouth Center Inc. v. Chrysler Motor Corp.* (1967) 255 Cal. App. 2d 300, 306.

Further, "... in deciding whether to issue a preliminary injunction, a trial court weighs two interrelated factors: the likelihood the moving party ultimately will prevail on the merits, and the relative harm to the parties from the issuance or nonissuance of the injunction. (Citation omitted.)" See *Hunt v. Superior Court* (1999) 21 Cal. App. 4th 984, 999.

Finally, in *Butt v. State of California* (1992) 4 Cal. 4th 668, the Supreme Court discussed the elements for issuance of an injunction, stating: "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." *Id.* at 678. Nevertheless, the *Butt* court further noted that: "A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (Citation omitted.)" *Id.* Thus, when irreparable harm is clearly shown, a lesser showing as to prevailing on the merits is required, and the converse is also true.

An injunction is mandatory if it compels performance of an affirmative act that changes the position of the parties. *Davenport v. Blue Cross of California* (1997) 52 Cal. App. 4th 435, 448. The nature of injunction is determined by its substance not its form. *Agricultural Labor Relations Board v. Superior Court* (1983) 149 Cal. App. 3d 709, 713 (finding injunction restraining employer from "refusing to reinstate" worker was in fact mandatory injunction requiring employer to rehire worker).

"A preliminary mandatory injunction is rarely granted, and is subject to stricter review on appeal. The granting of a mandatory injunction pending trial is not permitted except in extreme cases where the right thereto is clearly established." *Shoemaker v. County of Los Angeles* (1995), 37 Cal. App. 4th 618, 625 (internal quotations omitted).

In *Paramount Pictures Corp. v. Davis* (1964) 228 Cal. App. 2d 827, 838-39, the court in a breach of contract case stated that a preliminary injunction having the effect of granting the litigant all injunctive relief requested in its complaint and accomplishing the main purpose of the action in advance of a trial on the merits will rarely issue.

		And, for what it is worth, a mandatory injunction is automatically stayed pending appeal. <i>Kettenhofen v. Superior Court</i> (1961) 55 Cal. 2d 189, 191; <i>Agricultural Labor Relations Board v. Superior Court</i>, <i>supra</i>, 149 Cal. App. 3d at 713. <u>Discussion</u> <i>Likelihood of Prevailing on the Merits</i> For her motion, Plaintiff describes her fall and injuries, further stating that her condition has worsened due to delays in treatment. [Motion MPA (ROA #72) at 5; Nguyen Decl. (ROA #68), ¶¶ 207.] She does not expressly discuss her causes of action or which one she is likely to prevail on that supports issuance of an injunction. Nor does she identify ongoing acts by Defendant that are obstructing Plaintiff's access to medical care. Defendant Coast Community College District contends that Plaintiff cannot show a likelihood of prevailing on what is essentially a premises liability action against a governmental entity because she has not complied with the Government Claims Act. Govt. Code §§ 835, 945.4, 950.2, 912.4. [Opp. (ROA #119) at 4-5.] Even if Plaintiff could and did show a likelihood of prevailing on her claims for liability for personal injury, it is unclear how or what right to injunctive relief against Defendant, rather than a claim for damages, this would give rise to. For the first time on reply Plaintiff suggests that the court issue a preservation order, but new requests for injunctive relief may not be raised on reply. Moreover, Plaintiff has provided no factual basis for such relief. <i>Irreparable Harm/Balance of Harm</i> If Plaintiff's conditioning is worsening due to delayed medical care, that is harm. But as discussed, there is no tie in with the claims asserted by Plaintiff or to any allegations of ongoing conduct by Defendant. There is no balance of harms to weighed because there is no showing of conduct of Defendant to be enjoined. For all the above reasons, the motion for preliminary injunction is denied.
7.	2024-1448174 Mourshaki vs. Farmers Insurance Company, INC	Defendant Farmers Insurance Exchange's ("Defendant") Motion for Summary Judgment on Plaintiff Abraham Mourshaki's ("Plaintiff") Complaint is granted. <u>Procedural Issues</u> Defendant's request for judicial notice (ROA 38) is granted. (Evid. Code, § 452, subd. (d).)